

25VECV03042 25VECV03042

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-09

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25VECV03042 BRADLEY V ATTILA

Demurrer: In light of the filing of the First Amended Complaint, the demurrer is moot and taken off calendar.

Opposition to the Demurrer was due nine Court days before the hearing. (CCP §1005(b).) The Opposition due date is therefore June 25, 2026 when accounting for the July 3, 2026 Court holiday. However, Plaintiff's First Amended Complaint was untimely filed on June 26, 2025—which is one day after the Opposition was due.

California recognizes "a general rule of...liberal allowance of amendments..." (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) It has also long been recognized that "even if the proposed legal theory is a novel one, 'the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.'" (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)

In light of the liberality associated with granting motions for leave to amend up to and including the time of trial, the Court waives the procedural defect associated with Plaintiff's untimely filing of the FAC recognizing the confusion that a Court holiday can have. The FAC is the operative pleading. The Demurrer and Motion to Strike are therefore moot.